

24SMCV00901 24SMCV00901

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TENTATIVE RULING

September 10, 2026

24SMCV00901 (Tustin Legacy LLC, et.
al. v. Haxton, et. al.)

INSTANT MOTION

On July 27, 2026, plaintiff Tustin Legacy, LLC (Plaintiff) filed the instant motion for an order that the truth of the matters specified in Plaintiff's Requests for Admissions (RFAs) (Set Two) propounded and served on defendant Aaron Haxton (Haxton) be deemed admitted. Plaintiff requests monetary sanctions in the amount of \$2,220.00.

No opposition has been filed.

DISCUSSION

"If a party to whom requests for admission are directed fails to serve a timely response...[t]he requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction..." (Code Civ. Proc., § 2033.280.)

Plaintiff's unopposed motion to deem RFAs admitted is GRANTED. On June 9, 2026, Plaintiff served Haxton with Requests for Admissions (Set Two) overnight via FedEx to his last-known

address, P.O. Box 1093, Los Alamos, CA 93440. (Kuehl Decl., ¶¶ 6-8, Ex. 7.) On June 10, 2026, Plaintiff also served Haxton with the same discovery via certified mail to the same address. (Id. ¶ 9, Ex. 8.) Haxton's responses to the RFAs were due or before July 13, 2026. No objections or responses were received to date. (Id. ¶ 10.) No opposition has been filed.

Plaintiff's request for monetary

sanctions is GRANTED in the full amount of \$2,220.00. The Court finds that monetary sanctions are appropriate, and the amount requested is reasonable. (Kuehl Decl.)